

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1598
(Representatives Schreiber-Beck, D. Anderson, Hagert, Nelson, Wagner)

AN ACT to amend and reenact section 20.1-01-07 of the North Dakota Century Code, relating to hunting big game or small game other than waterfowl or cranes with a motor-driven vehicle.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 20.1-01-07 of the North Dakota Century Code is amended and reenacted as follows:

20.1-01-07. Hunting big game or small game other than waterfowl or cranes with motor-driven vehicles prohibited - Exception - Motor-driven vehicle use in transporting big game restricted.

1. Except as provided in subsection 10 of section 20.1-02-05 and as otherwise provided in this section, ~~a person~~ an individual, ~~other than the landowner, without the written permission of the landowner or a lessee who actively farms or ranches that land,~~ while hunting big game or small game, other than waterfowl or cranes, ~~statewide,~~ may not use a motor-driven vehicle on any land other than an established road or trail without the written permission of the landowner, unless that ~~person~~ individual has reduced a big game animal to possession and cannot easily retrieve the big game animal, ~~in which case a motor-driven vehicle may be used to retrieve the big game animal,~~ but after retrieval, the motor-driven vehicle must be returned to the established road or trail along the same route it originally departed. ~~A person may not use a motor-driven vehicle on any land other than an established road or trail to hunt upland game during the deer gun season.~~
2. For purposes of safety and allowing normal travel, a motor-driven vehicle may be parked on the roadside or directly adjacent to said road or trail.
3. ~~No person~~ an individual, while hunting big game or small game, statewide, may drive or attempt to drive, run or attempt to run, molest or attempt to molest, flush or attempt to flush, or harass or attempt to harass any such game with the use or aid of any motor-driven vehicle. ~~A person, other than the landowner, without the written permission of the landowner or a lessee who actively farms or ranches that land, while hunting big game or small game, other than waterfowl or cranes, statewide, may not drive through any retired cropland, brush area, slough area, timber area, open prairie, or unharvested or harvested cropland, except upon an established road or trail. The provisions of this section relating to hunting big game or small game while using a motor-driven vehicle on any land other than an established road or trail without the written permission of the landowner or a lessee who actually farms or ranches that land do not apply to the hunting of big game during an open and lawful season for small game.~~

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1598.

House Vote: Yeas 87 Nays 2 Absent 5

Senate Vote: Yeas 47 Nays 0 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State